



POLICE DEPARTMENT

June 6, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202311676 (Incident Date: December 12, 2023) regarding Sergeant Michael Venditti, Tax No. 952318 (PODS Case No. C-034154), and Police Officer Nicholas Toner, Tax No. 968845 (PODS Case No. C-034153).

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Venditti and Police Officer Toner and has determined that their alleged misconduct does not warrant disciplinary action.

In this case, members of the service observed the complainant in a double-parked vehicle with excessively dark tints. Upon approaching the vehicle, an opened bottle of alcohol was observed in the back seat. The complainant was taken out of the vehicle, frisked and searched,¹ and the vehicle was searched. Multiple pedestrians gathered close to the officers, making Sergeant Venditti feel unsafe. Subsequently, Sergeant Venditti authorized the complainant to be taken back to the stationhouse to receive a Criminal Court summons, and Officer Toner frisked and searched the complainant before placing him into a police vehicle for transport to the stationhouse. The CCRB substantiated one allegation of improper detention against Sergeant Venditti and one allegation of improper search against Officer Toner.

Upon consideration of the matter, the Police Commissioner finds that the actions of both Sergeant Venditti and Officer Toner were within Department guidelines. It was within Sergeant Venditti's discretion to authorize the removal of the complainant to the stationhouse, to issue the complainant a summons, due to his assessment that it would be safer than issuing it on scene. When the decision was made to take the complainant into custody, a frisk/field search is required under Patrol Guide 208-05. Thus, just as Officer Toner's frisk and search of the individual at the stationhouse was proper, the frisk/field search at the incident location was also proper.

¹ The CCRB substantiated allegations against the officer who conducted this initial frisk and search. The Police Commissioner concurs with the substantiations and the officer will receive discipline.

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Therefore, based on the foregoing, Sergeant Venditti will receive no disciplinary action for the allegation regarding the detention, and Police Officer Toner will receive no disciplinary action for the allegation regarding the search.

Sincerely,


Michael P. Baker

Assistant Chief
Commanding Officer
Police Commissioner's Office